

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

INDEX NO.

-----X
RODNEY THOMAS

Date Purchased:

Plaintiff(s)

-against-

SUMMONS

THE CITY OF NEW YORK & NYPD POLICE OFFICER
ANDRES F CALLE (Tax Registry # 954593)

Defendant(s)
-----X

TO: THE CITY OF NEW YORK-100 Church Street, New York, NY 10007
NYPD POLICE OFFICER ANDRES F CALLE-100 Church Street, New York, NY 10007

YOU ARE HEREBY SUMMONED to answer the complaint in this action a copy of which is herewith served upon you, and to serve a copy of your answer, on the plaintiff's attorney(s) at the address listed below within 20 days after the service of this Summons and Complaint exclusive of the day of service, or within thirty (30) days after the service is complete if service is made by any method other than personal delivery to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of Occurrence, and the residence address of the plaintiff is at 955 Grant Avenue, Bronx, New York.

Dated: Bronx, New York
July 1, 2015

Yours, etc.


JEFFREY F. COHEN, ESQ.

Attorney for Plaintiff
617 East 188th Street, Suite 3
Bronx, New York 10458
(718) 741-9645

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RODNEY THOMAS,

Index No.

Plaintiff(s),

-against-

VERIFIED
COMPLAINT

THE CITY OF NEW YORK & NYPD POLICE OFFICER
ANDRES F CALLE (Tax Registry # 954593)

Defendant(s).

-----X

Plaintiff, RODNEY THOMAS, as and for his Verified Complaint, by his attorney,
JEFFREY F. COHEN, herein states as follows:

AS AND FOR A FIRST CAUSE OF ACTION
(FALSE ARREST AND IMPRISONMENT)

1. The Plaintiff at all times hereinafter mentioned was and still is a resident of the County of the Bronx in the State of New York.
2. That at all times herein, Defendant, THE CITY OF NEW YORK (hereinafter the "CITY"), was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. That at all times herein, Defendant, CITY, operated, maintained, managed and controlled the Police Department of the City of New York.
4. That at all times herein, the Police Department of the City of New York is an agency, instrumentality, department of Defendant, CITY, and/or Defendant, CITY derived benefit from the activities of the Police Department of the City of New York.
5. That at all times herein, Defendant CITY operated, maintained, managed and controlled the Office of the District Attorney, Bronx County.

6. That the Office of the District Attorney, County of Bronx, is an agency, instrumentality, department of Defendant CITY, and/or Defendant CITY derived benefit from the activities of the Office of the District Attorney, County of Bronx.

7. At all times mentioned herein, the Defendant, NYPD POLICE OFFICER ANDRES F CALLE, was and still is an agent, servant and/or employee of the Defendant CITY.

8. At all times mentioned herein, the Defendant, NYPD POLICE OFFICER ANDRES F CALLE, was a police officer employed by the Defendant CITY.

9. At all times mentioned herein, the Defendant, NYPD POLICE OFFICER ANDRES F CALLE, was a police officer employed by the Police Department of the City of New York, and he is being sued in his individual and official capacities and as an employee acting within the scope of his employment and under color of State Law.

10. That the Plaintiff has served a notice of claim, on or about September 19, 2014 in accordance with applicable statutes, on the Defendant and that at least 30 days have elapsed since the service of such notice and that adjustment or payment thereof has been neglected or refused.

11. That the Plaintiff has fully complied with Defendant's demand for an examination on or about February 13, 2015.

12. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based.

13. On or about July 4, 2014 at approximately 10:00 PM in the County of Bronx, New York, the Plaintiff was unlawfully detained, arrested and imprisoned by agents, servants and/or employees of the Defendant, CITY, including NYPD POLICE OFFICER ANDRES F CALLE, who at that time was a police officer acting within the scope of his employment.

14. That the aforesaid arrest and imprisonment was malicious, unlawful and not based upon a valid warrant, probable cause, and/or any other justification, and was therefore a false arrest and imprisonment.

15. That the aforesaid arrest was an imprisonment was based on an invalid and unverified outstanding warrant.

16. That the warrant in fact was no longer open and had already been sealed.

17. That Defendant CITY, through its agents, servants and employees, acted in bad faith and without probable cause in committing the aforesaid arrest and imprisonment of the Plaintiff.

18. At the time of his unlawful arrest and imprisonment, the Plaintiff had not committed or attempted to commit any illegal act.

19. At the time of Plaintiff's unlawful arrest and imprisonment, the Defendant(s) NYPD POLICE OFFICER ANDRES F CALLE, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonment was false and without probable cause.

20. That the aforesaid arrest and imprisonment was made with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal complaint(s).

21. The aforesaid false arrest and imprisonment caused Plaintiff to suffer severe physical injuries, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses and damage to his reputation.

22. By reason of the foregoing, the Defendants have become liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
(MALICIOUS PROSECUTION)

23. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein.

24. On or about July 4, 2014, the Defendants intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against the Plaintiff in the Criminal Court of the City of New York, County of Bronx, upon the filing of an accusatory instrument without probable cause.

25. In commencing and continuing the said malicious prosecution, Defendants caused the Plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

26. The Plaintiff had not committed or attempted to commit any illegal act(s).

27. The Plaintiff had not given Defendant, CITY, its agents, servants and/or employees, probable cause to believe that he had committed the falsely charged illegal acts.

28. The Defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that the said investigation into this matter was flawed and incomplete.

29. The Defendant, CITY, its agents, servants and/or employees, including Defendant NYPD POLICE OFFICER ANDRES F CALLE, willfully, negligently and wrongfully accused the Plaintiff of having committed acts in violation of the Penal Law of the State of New York.

30. The Defendant, CITY, its agents, servants and/or employees, willfully, negligently and wrongfully continued to prosecute the Plaintiff for alleged violations of the Penal Law of the State of New York, even though the Defendant knew or should have known of facts and circumstances that would have led a reasonable person to conclude that the criminal complaint, upon which said criminal prosecution was based, contained material falsehoods and was otherwise improper, and that the continued prosecution of the Plaintiff was, therefore, improper under the circumstances.

31. That the criminal prosecution against Plaintiff was dismissed by a Judge of the Criminal Court of the City of New York, Bronx County.

32. As a result of the malicious prosecution, the Plaintiff was caused to suffer and continue to suffer severe emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of wages, legal expenses and damage to his reputation.

33. By reason of the foregoing, the Defendants have become liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
(ASSAULT/EXCESSIVE FORCE)

34. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein.

35. On or about July 4, 2014, during the aforesaid arrest, detention and imprisonment of the Plaintiff by Defendants and other agents, servants and/or employees of Defendant CITY, including Defendant NYPD POLICE OFFICER ANDRES F CALLE, did intentionally, wantonly, brutally and maliciously assault and batter Plaintiff, and did otherwise use excessive and unreasonable force in restraining and detaining Plaintiff, without cause, provocation or justification.

36. The aforesaid assault was carried out solely to inflict physical and mental harm upon Plaintiff.

37. At all times hereinafter mentioned, agents, servants and/or employees of Defendant CITY, was acting within the scope of their employment, under the color of authority, and in furtherance of their employer's interest, including Defendant NYPD POLICE OFFICER ANDRES F CALLE.

38. The aforementioned conduct of agents, servants and/or employees of Defendant CITY, was willful and wanton and the Defendants acted with reckless disregard for the consequences, including Defendant NYPD POLICE OFFICER ANDRES F CALLE.

39. As a result, Plaintiff was injured, internally and externally, became sick, sore, lame and disabled and was caused to suffer and still suffers severe and permanent injuries, and will continue to suffer pain and discomfort; and were caused to obtain medical care and attention in an attempt to treat the aforesaid injuries.

40. By reason of the foregoing, Defendants have become liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
(INFLECTION OF EMOTIONAL DISTRESS)

41. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein.

42. The aforementioned acts of Defendant(s) were so outrageous, malicious and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

43. Defendant(s) acted with the desire and intent to cause Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

44. Defendant(s) intentionally, knowingly, willfully, recklessly, negligently and wrongfully caused Plaintiff emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

45. Defendant(s) acted with utter disregard of the consequences of their actions.

46. As a result, Plaintiff was caused to suffer the infliction of emotional distress.

47. By reason of the foregoing, Defendant(s) became liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
(NEGLIGENCE)

48. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein.

49. The actions of Defendant CITY, through its agents, servants and/or employees, heretofore described constitutes negligence in that Defendant CITY negligently trained or failed to train its agents, servants, or employees including Defendant NYPD POLICE OFFICER ANDRES F CALLE.

50. The actions of Defendant CITY, through its agents, servants and/or employees heretofore described constitutes negligence in that CITY negligently supervised or failed to supervise its agents, servants and/or employees, including Defendant NYPD POLICE OFFICER ANDRES F CALLE.

51. The actions of Defendant CITY, through its agents, servants and/or employees heretofore described constitutes negligence in that Defendant CITY negligently disciplined or failed to discipline its agents, servants or employees, including Defendant NYPD POLICE OFFICER ANDRES F CALLE.

52. Defendant CITY was negligent in its hiring of its agents, servants and/or employees, including Defendant NYPD POLICE OFFICER ANDRES F CALLE, who Defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, was unfit to hold his position.

53. Defendant CITY was negligent in its retention of its agents, servants and/or employees, including Defendant NYPD POLICE OFFICER ANDRES F CALLE, who

Defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, was unfit to hold his position in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused and abused his position.

54. That the Defendant(s), their agents, servants and/or employees were otherwise, and in general, careless, reckless and negligent under the circumstances existing as previously described, including Defendant NYPD POLICE OFFICER ANDRES F CALLE.

55. All of the causes of action his complaint are specifically excepted under C.P.L.R. Section 1602.

56. As a result of the negligence of Defendant CITY and the acts of Defendant NYPD POLICE OFFICER ANDRES F CALLE, and other agents, servants and/or employees of Defendant CITY, without any negligence on the part of Plaintiff, Plaintiff was caused to suffer severe and permanent personal injuries, pain and suffering, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, and loss of wages, legal expenses, and damage to his reputation.

57. By reason of the foregoing, Defendants have become liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
(VIOLATION OF CIVIL RIGHTS)

58. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein.

59. The actions of Defendants heretofore described resulting from the July 4, 2014 arrest, detention, imprisonment, assault, use of excessive force, and prosecution of the Plaintiff, constitute an unlawful arrest, imprisonment, assault, use of excessive force and malicious prosecution which deprived the Plaintiff of his rights, privileges and immunities as guaranteed under the United States

Constitution, Amendments One, Four, Five and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. Sections 1981, 1983, 1985, 1986 and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of the Defendant CITY's agents, servants and/or employees, and those involving the arrest, detention and prosecution of individuals, including and especially, those persons such the Plaintiff who is a "person of color."

60. That the Defendant CITY established a custom policy and/or practice of encouraging, approving and/or tolerating the use by the New York City Police Department ("NYPD") of excessive force and acts of misconduct against civilians, and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and offices.

61. That the Defendant CITY was deliberately indifferent to the use of improper procedures in the detention and arrest of civilians, and established a custom policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by the NYPD and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees and officers, including Defendant NYPD POLICE OFFICER ANDRES F CALLE.

62. The Defendants have deprived the Plaintiff of his liberty in violation of his civil and constitutional rights as set forth in the United States Constitution, 42 U.S.C. Section 1983 and the Constitution of the State of New York.

63. The Defendants' actions were undertaken under color of law and would not have existed but for said Defendants' use of their official power.

64. That the Defendants conspired with each other and acted in concert to discriminate against and deprive the Plaintiff of his Constitutional and Civil rights.

65. The supervisors and policy making officers of Defendant CITY and its Police Department, and Office of the District Attorney, as a matter of policy, are deliberately indifferent to said practices and have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices, including Defendant NYPD POLICE OFFICER ANDRES F CALLE.

66. The Defendant CITY has failed to properly or effectively train its agents, servants and/or employees, including Defendant NYPD POLICE OFFICER ANDRES F CALLE, with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

67. The Defendant CITY has sanctioned the policy and practices hereto described through its deliberate indifference to the effect of such policy and practices upon the constitutional rights of the Plaintiff and others similarly situated.

68. That the Defendants motivations were in contravention of the United States Constitution and the Constitution of the State of New York.

69. By reason of the foregoing, the Plaintiff has been damaged and suffered serious and severe permanent physical injuries, emotional distress and emotional harm as a result of these deprivations of constitutional and civil rights.

70. As a result, the Defendants have become liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(ATTORNEYS' FEES)

71. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein.

72. The actions of Defendants heretofore described resulting from the July 4, 2014, arrest, detention, imprisonment, assault, use of excessive force, and prosecution of the Plaintiff, constitute an unlawful arrest, imprisonment, assault, use of excessive force, and malicious prosecution which deprived the Plaintiff of his rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. Sections 1981, 1983, 1985, 1986 and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of the Defendant CITY's agents, servants and/or employees, including Defendant NYPD POLICE OFFICER ANDRES F CALLE, and those involving the arrest, detention and prosecution of the individuals, such as the Plaintiff.

73. That the Plaintiff has incurred significant attorney's fees in the prosecution of the above referenced claims against the Defendants. That in the event that the Plaintiff is successful in the prosecution of the aforesaid claim(s), Plaintiff shall be a prevailing party within the meaning of 42 U.S.C. Section 1988 and entitled to the recovery of said attorney's fees from the Defendants.

74. As a result, the Defendants have become liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against the Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York

July 1, 2015



JEFFREY F. COHEN ESQ.
Attorney for Plaintiff
617 East 188th Street, 3rd Floor
Bronx, NY 10458
(718) 741-9645

VERIFICATION

STATE OF NEW YORK }
COUNTY OF Bronx }

Rodney Thomas BEING DULY SWORN,
DEPOSES AND SAYS: THAT DEPONENT IS THE PLAINTIFF IN THE
WITHIN ACTION AND KNOWS THAT THE CONTENTS HEREIN STATED
TO BE ALLEGED UPON INFORMATION AND BELIEF AND THAT AS TO
THOSE MATTERS DEPONENT BELIEVES IT TO BE TRUE.

X R. Thomas

SWORN TO BEFORE ME THIS

1st DAY OF July 20 15
[Signature]

NOTARY PUBLIC

WILLIAM COHEN
Notary Public, State of New York
No. 02CO6210822
Qualified in Rockland County
Commission Expires August 31, 20 17

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RODNEY THOMAS

Index No.

Plaintiff,

-against-

THE CITY OF NEW YORK & NYPD POLICE OFFICER
ANDRES F CALLE (Tax Registry# 954593)

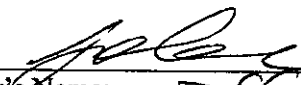
Defendants.

SUMMONS & VERIFIED COMPLAINT

JEFFREY F COHEN, ESQ.
Attorney for Plaintiff
617 East 188th Street, 3rd Floor
Bronx, New York 10458
(718)741-9645

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 7-1-15

Signature: 

Print Signer's Name: Jeffrey Cohen

Service of a copy of the within

is hereby admitted

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

☐ Notice of entry

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ Notice of Settlement

That an order of which the within is a true copy will be presented for settlement to the Hon.
one of the judges of the within named Court, at

On 20 at M.

Dated:

To:
Attorney(s) for

JEFFREY F COHEN
Attorney for Plaintiff
617 East 188th Street, 3rd Floor
Bronx, NY 10458